Docusign Envelope ID: 40DB1CE2-2E54-47A5-B112-AD1E3656A1E2

THIS PROMISSORY NOTE HAS NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED (THE "**SECURITIES ACT**"), OR REGISTERED OR QUALIFIED UNDER ANY APPLICABLE STATE SECURITIES LAW AND MAY NOT BE SOLD, TRANSFERRED, PLEDGED, HYPOTHECATED OR OTHERWISE ASSIGNED EXCEPT IN COMPLIANCE WITH THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT AND THE REGISTRATION OR QUALIFICATION REQUIREMENTS OF SUCH STATE SECURITIES LAWS OR PURSUANT TO AN EXEMPTION FROM SUCH REGISTRATION AND QUALIFICATION.

November 13, 2024

SECURED SUBORDINATED PROMISSORY NOTE

FOR VALUE RECEIVED, Fish Company Management, LLC, a Delaware limited liability company having an address at 133 E. Putnam Avenue, Cos Cob, CT 06807 ("**Debtor**"), HEREBY UNCONDITIONALLY PROMISES TO PAY to order of Oren Sauberman, having an address at 34 Ranch Road, Woodbridge, CT 16525-1912 ("**Lender")**, the principal sum of Two Hundred Fifty Thousand United States Dollars (US$250,000).

The Loan. This Note is issued by Debtor to Lender to memorialize Lender's loan to Debtor of the aforesaid Two Hundred Fifty Thousand United States Dollars (US$250,000) (the "**Loan**") and Debtor's obligation to pay to Lender the principal and interest provided for herein. Debtor has delivered this Note and provided the security described herein as an inducement to Lender to provide the Loan.

Use of Proceeds. The proceeds of the Loan shall be used for the purposes set forth on Exhibit A hereto.

Subordination. The indebtedness evidenced by this Note, and the payment of principal and interest hereon, is wholly subordinated and junior in right of payment to all Senior Indebtedness of Debtor now outstanding or hereinafter incurred. "**Senior Indebtedness**" means the principal of, and premium, if any, and interest on (i) all indebtedness of Debtor for monies borrowed from banks, trust companies, insurance companies and other financial institutions, including commercial paper and accounts receivable sold or assigned by Debtor to such institutions, and (ii) any other indebtedness of Debtor which Debtor and Lender may hereafter from time to time expressly and specifically agree in writing shall constitute Senior Indebtedness. The provisions of this paragraph are, and are intended solely, for the purposes of defining the relative rights of the Lender and the holders of Senior Indebtedness and nothing in this paragraph shall impair, as between Debtor and Lender, Debtor's obligation, which is unconditional and absolute, to pay to Lender the principal and interest provided for in this Note in accordance with its terms, nor shall anything herein prevent Lender from exercising all remedies otherwise permitted by applicable law or hereunder upon default, subject to the rights set forth above of holders of Senior Indebtedness to receive cash, property or securities otherwise payable or deliverable Lender.

Docusign Envelope ID: 40DB1CE2-2E54-47A5-B112-AD1E3656A1E2

Security. The obligations of Debtor hereunder are secured by (i) the guarantees of Debtor's subsidiaries, Fish Island, LLC, a Connecticut limited liability company, Northeast Fish Co. LLC, a Connecticut limited liability company, and 5th Ave Brooklyn LLC, a Connecticut limited liability company (collectively, the "**Guarantors**"), and grant by the Guarantors of a subordinated lien on their respective assets, pursuant to a Guaranty and Security Agreement of even date herewith between Guarantors and Lender (the "**Guaranty**"); and (ii) a pledge and first priority security interest in Debtor's membership interests in the Guarantors pursuant to a Pledge and Security Agreement of even date herewith between Debtor and Lender (the "**Debtor Pledge**") and (iii) a pledge and first priority security interest in the membership interest in Debtor owned by Sea Company LLC ("**SeaCo**") pursuant to a Pledge and Security Agreement of even date herewith between SeaCo and Lender (the "**SeaCo Pledge**") (this Note, the Guaranty, the Debtor Pledge and the SeaCo Pledge are collectively referred to as the "**Loan Documents**").

Interest. From and after the date of this Note until it is paid in full, interest on this Note shall accrue on the unpaid principal amount of this Note outstanding from time to time at a rate of ten percent (10.00%) per annum (the "**Interest Rate**") and shall be payable quarterly in arrears on the first day of each calendar quarter (each, an "**Interest Payment Day**"). Interest due under this Note shall be calculated on the basis of a 360-day year consisting of 12 months of 30 days each (30/360 basis).

Payments of Principal and Interest. The entire principal sum of this Note then outstanding, together with all accrued and unpaid interest, shall be due and payable on November 13, 2026 (the "**Maturity Date**"). Principal and interest shall be paid by Debtor in lawful money of the United States in immediately available funds without defense, set-off or counterclaim of any kind. All payments shall be applied to the payment of accrued interest before being applied to the payment of principal. If any payment required under this Note becomes due and payable on a day other than a Business Day, the maturity thereof shall be extended to the next succeeding Business Day, and interest shall be payable thereon at the rate herein specified during such extension. For purposes of this Note, "**Business Day**" shall mean any day except a Saturday, Sunday or other day on which commercial banks in New York, New York are closed.

Events of Default. Debtor shall be in default under this Note upon the occurrence of any one or more of the following events (each an "**Event of Default**"):

(a) The failure by Debtor to pay any principal, interest or other amount owing under this Note when due and the continuance of such failure for (i) forty five (45) Business Days if no amount due under this Note has have not previously been paid later than three (3) days following the due date thereof, (ii) thirty (30) Business Days if on one (1) prior occasion an amount due under this Note has been paid later than three (3) days following the due date thereof, or (iii) ten (10) Business Days if on more than one (1) prior occasion amounts due under this Note have been paid later than three (3) days following the due date thereof; provided that notwithstanding the preceding sentence, an Event of Default shall not occur due to any payment failure caused by the holder of any Senior Indebtedness prohibiting the payment of any amount due under this Note.

Docusign Envelope ID: 40DB1CE2-2E54-47A5-B112-AD1E3656A1E2

(b) Debtor voluntarily or involuntarily dissolves or is dissolved; or a proceeding under any bankruptcy, reorganization, arrangement of debt, insolvency, readjustment of debt or receivership law or statute is filed against Debtor and any such proceeding is not dismissed within sixty (60) days of the date of its filing; or a proceeding under any bankruptcy, reorganization, arrangement of debt, insolvency, readjustment of debt or receivership law or statute is filed by Debtor; or Debtor makes an assignment for the benefit of creditors; or Debtor takes any action to authorize any of the foregoing;

(c) Debtor fails to comply with or perform any other term, obligation, covenant or condition contained in this Note or any other agreement or instrument entered into by Debtor or any guarantor or pledgor providing security in connection with this Note and which failure shall continue for thirty (30) consecutive days following written notice of such default by Lender to Debtor;

(d) there is any event or condition that shall occur which results in the acceleration of the maturity of any indebtedness incurred, issued or guaranteed by Debtor or any of its direct or indirect subsidiaries; or

(e) An Event of Default (as defined therein) occurs under the Five Hundred Sixty-Eight Thousand Dollar ($568,000) Secured Subordinated Promissory Note of even date herewith issued by Debtor to Lender.

Default Rate. Upon the occurrence and during the continuation of an Event of Default, interest on the outstanding principal balance of this Note and all accrued and unpaid interest thereon shall thereafter bear interest at a rate of interest equal to the greater of (i) fifteen percent (15%) per annum or (ii) the maximum rate of interest permitted by applicable law (the "**Default Rate**") until such time that the Event of Default is cured, at which time the Interest Rate shall be reinstated with respect to the remaining balance due under this Note.

Acceleration. Upon the occurrence of any Event of Default, Lender may declare the then entire outstanding principal of this Note and all accrued and unpaid interest thereon to become immediately due and payable, without notice or demand, provided that Lender shall endeavor (but is not required) to provide notice to Debtor of any such acceleration. Upon the occurrence of any Event of Default, Lender may additionally exercise any of his other rights and remedies granted hereunder or under applicable law. Such remedies shall be cumulative and concurrent and may be pursued singly, successively or together, at Lender's option, and as often as the occasion therefore arises. In addition, if Debtor (i) sells all or any portion of its membership interest in the Guarantors, (ii) sells all or substantially all of its assets, or (iii) is a party to a merger with another entity in which the holders of membership interests in Debtor collectively own less than a majority of the issued and outstanding equity interests of the entity that survives the merger, the net proceeds of such transaction, after the payment of reasonable transaction expenses and payments owed to any holder of Senior Indebtedness, shall be used to pay down

Docusign Envelope ID: 40DB1CE2-2E54-47A5-B112-AD1E3656A1E2

Debtor's obligations under this Note. Any such payments shall be applied first to accrued and unpaid interest hereunder and then to principal.

Prepayments. Debtor shall have the right to prepay all or any portion of this Note at any time prior to the Maturity Date by providing not less than ten (10) days advance written notice to Lender. Any such prepayment shall be applied first to accrued and unpaid interest due hereunder and then to principal. Any prepayment does not otherwise affect Debtor's obligation to pay any amounts otherwise payable by it under this Note when due.

Late Charge. In the event any of the payments required to be made under this Note is not received by or on behalf of Lender in full within ten (10) days after the due date thereof, and the same subsequently is received and accepted by or on behalf of Lender, Debtor shall pay on demand from Lender a late payment charge in the amount of five percent (5%) of the amount of the delinquent payment.

Waivers. Debtor waives diligence, demand, presentment for payment, protest, notice of protest and notice of nonpayment or dishonor of this Note, and all other notices and demands of any kind in connection with this Note, and hereby consents to the extension of the maturity of this Note, to the release or exchange of any collateral security all or any part of this Note, to the release, in whole or in part, of any other party now or hereafter liable or potentially liable hereon, and to the renewal hereof, without notice thereof and without releasing or waiving the rights of the holder of this Note as against any parties liable hereon.

Attorneys' Fees. In the event that any action, suit or other proceeding is brought against Debtor by Lender to collect this Note or to otherwise enforce his rights under any of the Loan Documents, Lender shall be entitled to recover from Debtor all court costs and reasonable expenses of collection and enforcement, including, without limitation, attorneys' fees and disbursements. In addition, if an Event of Default occurs, Debtor shall pay all reasonable attorneys' fees and disbursements incurred by Lender in obtaining advice as to his rights and remedies in connection with such default.

Governing Law; Venue. This Note shall be governed by, and construed in accordance with, the laws of the State of Connecticut without regard to the principles of conflicts of laws. Debtor and Lender each hereby irrevocably consent to the jurisdiction of the state courts of the state of Connecticut and the federal District Court for the District of Connecticut over any dispute arising from this Note.

Waiver of Jury Trial. TO THE EXTENT NOT PROHIBITED BY APPLICABLE LAW THAT CANNOT BE WAIVED, LENDER AND DEBTOR HEREBY WAIVE, AND COVENANT THAT THEY WILL NOT ASSERT (WHETHER AS PLAINTIFF, DEFENDANT OR OTHERWISE), ANY RIGHT TO TRIAL BY JURY IN ANY ACTION ARISING IN WHOLE OR IN PART UNDER OR IN CONNECTION WITH THIS NOTE, WHETHER NOW EXISTING OR HEREAFTER ARISING, AND WHETHER SOUNDING IN CONTRACT, TORT OR OTHERWISE. THE PARTIES AGREE THAT EITHER OF THEM MAY FILE A COPY OF THIS PARAGRAPH WITH ANY COURT AS WRITTEN EVIDENCE OF THE KNOWING, VOLUNTARY AND BARGAINED-FOR

Docusign Envelope ID: 40DB1CE2-2E54-47A5-B112-AD1E3656A1E2

AGREEMENT BETWEEN THE PARTIES IRREVOCABLY TO WAIVE THEIR RIGHTS TO TRIAL BY JURY IN ANY ACTION WHATSOEVER BETWEEN THEM RELATING TO THIS NOTE, WHICH ACTION WILL INSTEAD BE TRIED IN A COURT OF COMPETENT JURISDICTION BY A JUDGE SITTING WITHOUT A JURY.

Miscellaneous. This Note shall be binding upon Debtor and the successors and assigns of Debtor and inure to the benefit of Lender and Lender's heirs, executors, personal representatives, successors and assigns. If any term of this Note shall be held invalid, illegal or unenforceable, the validity of all other terms and provisions hereof shall in no way be affected thereby. This Note may not be amended, modified or discharged, nor may any provision hereof be waived orally, by course of dealing or otherwise, unless such amendment, modification, discharge or waiver shall be in writing and duly executed by Lender and Debtor. No delay, failure or omission by Lender or any subsequent holder in respect of the exercise of any right or remedy granted hereunder or allowed by law to Lender or any other holder shall constitute a waiver of the right to exercise the same at any future time or in the same or other circumstances.

Theft or Destruction of Note. On receipt of evidence reasonably satisfactory to Debtor of the loss, theft, destruction or mutilation of this Note and, in the case of loss, theft or destruction, on receipt of indemnity or security reasonably satisfactory to the parties hereto or, in the case of mutilation, on surrender of the mutilated Note, Debtor shall execute and deliver to Lender a new Note of like tenor in lieu of this Note.

- ***The remainder of this page was intentionally left blank*** -

Docusign Envelope ID: 40DB1CE2-2E54-47A5-B112-AD1E3656A1E2

IN WITNESS WHEREOF, the undersigned Debtor has executed this Note as of the date first written above.

FISH COMPANY MANAGEMENT, LLC

DocuSigned by:
By: JAMES THISTLE
94C8B2D93BA7413
Name: James Thistle
Title: Member

Acknowledged and agreed by Lender as of the date first set forth above:

DocuSigned by:
Oren Sauberman
9FD09DCC988E4EC...
Oren Sauberman

Docusign Envelope ID: 40DB1CE2-2E54-47A5-B112-AD1E3656A1E2

EXHIBIT A

Use of Proceeds

Repayment of existing SBA Loan

Payment of legal fees of Jusmedico Law Group

Payment of consulting fees of Adam Fishman

Working capital